American Postal Workers Union, AFL-CIO



Mark Dimondstein, President

MOTOR VEHICLE SERVICE DIVISION



MOTOR VEHICLE SERVICE DIVISION

Michael O. Foster
Motor Vehicle Director



Kenny Prinz
Assistant Motor Vehicle Director



MOTOR VEHICLE SERVICE NBA's



William Wright
Central Region



Dryike Shaw
Southwest
Sub-Region



Joseph La Capria
Northeast Region



Garrett Langley
Eastern Region



Bruce Amey
Southeast
Sub-Region



Jerome A. Pittman
Western Region

MOTOR VEHICLE SERVICE

Article 39.2.A.6 & 7

Annual bidding process

Presented by

Motor Vehicle Craft

National Business Agents

Bruce Amey And Jerome Pittman



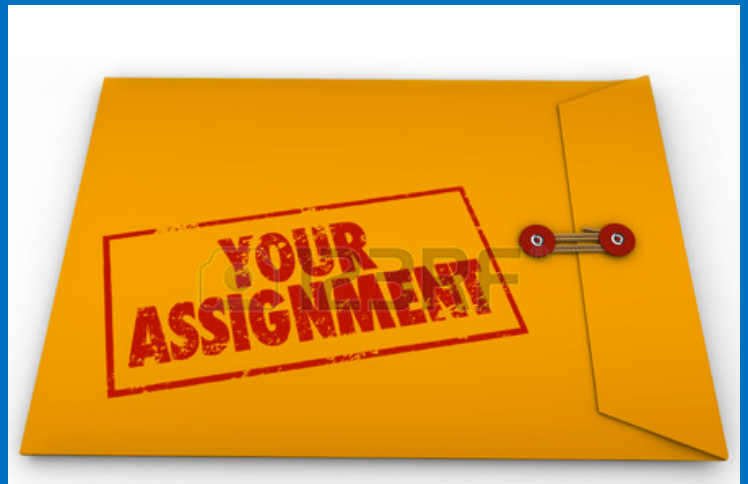
BID

A written request submitted to the installation head to be assigned to a duty assignment by a fulltime Motor Vehicle Craft employee eligible to bid on a vacancy or newly established duty assignment.

DUTY ASSIGNMENT

Duty Assignment. A duty assignment is a set of duties and responsibilities within recognized positions regularly scheduled during specific hours of duty.

Preferred Duty Assignment. Any assignment preferred by a full-time regular.



ARTICLE 39.2.A.6

When requested by the Union, all full-time regular Motor Vehicle Operator, Tractor-Trailer Operator and Vehicle Operator Assistant-Bulk Mail craft assignments shall be posted for bid once each calendar year.



ELIGIBLE BIDDER

Eligible Bidder. Full-time Motor Vehicle Craft employees are eligible to bid only within the Motor Vehicle Craft in the same installation, salary level, and position designation (except as specifically provided for in Section 2.A.10). When there are no successful bidders from the position designation of the vacant assignment, the assignment shall be filled in accordance with Section 2.A.11.

Article 39.2.A.11

When the opportunity for conversion to a residual full-time vacancy exists, the senior part-time flexible within the same occupational group and grade as the vacancy, will be converted into the assignment (except as provided in Article 39.1.B.7.e). If there is no part-time flexible employee or new work PSE in the same occupational group and grade, the residual vacancy shall be filled by qualified applicants in the following order: Motor Vehicle Craft within the installation, APWU crafts within the installation, other crafts within the installation, transfers, and then by other means.

Many locals have annual bids each year, with some even having a provision in their LMOU that annual bidding will be held each year.



For years, management felt that they had the right to force an annual bid on the Union, whenever they wanted, whether the Union wanted one or not.

This resulted in unnecessary changes to good runs, and in many cases the illegal reductions of runs.



ZERO BASE INITIATIVE

The Zero Base Initiative, is the Postal Service's new terminology for the old Breakthrough Productivity Initiative (BPI).



While the name has changed, the stated goal of the program remains the same:

To improve vehicle utilization by eliminating unnecessary transportation, reducing the number of trips, and curtailing unassigned drive time.



Unfortunately, most PVS operations are short of complement, which is clearly demonstrated by extreme amounts of overtime.



To find opportunities to make cuts, Zero Base teams conduct audits of transportation operations, using teams of transportation officials from other locations.

They begin by conducting an "entrance meeting" with key players, including local managers.



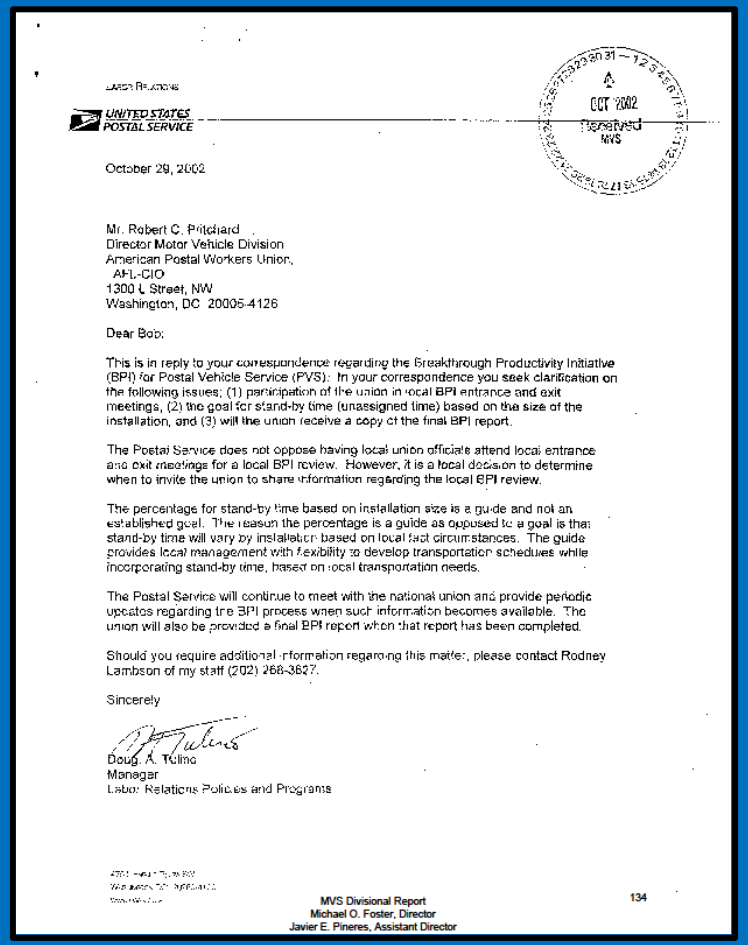
Next, the teams conduct an audit, observing transportation operations to find ways to "improve efficiency."

They evaluate whether there are too many trips to a single location, whether there is sufficient mail volume to justify a given run, whether vehicle utilization matches mail volume, etc.



On October 29, 2002 Doug Tulino sent a letter to Bob Pritchard giving clarification to several issues.

1. Participation of the union in entrance and exit meetings
2. Goals for stand-by time
3. Will the Union receive a final copy



Labor Relations

UNITED STATES POSTAL SERVICE

OCT 2002
Received
MVS

October 29, 2002

Mr. Robert C. Pritchard
Director Motor Vehicle Division
American Postal Workers Union,
AFL-CIO
1300 L Street, NW
Washington, DC 20005-4126

Dear Bob:

This is in reply to your correspondence regarding the Breakthrough Productivity Initiative (BPI) for Postal Vehicle Service (PVS). In your correspondence you seek clarification on the following issues; (1) participation of the union in local BPI entrance and exit meetings, (2) the goal for stand-by time (unassigned time) based on the size of the installation, and (3) will the union receive a copy of the final BPI report.

The Postal Service does not oppose having local union officials attend local entrance and exit meetings for a local BPI review. However, it is a local decision to determine when to invite the union to share information regarding the local BPI review.

The percentage for stand-by time based on installation size is a guide and not an established goal. The reason the percentage is a guide as opposed to a goal is that stand-by time will vary by installation based on local fact circumstances. The guide provides local management with flexibility to develop transportation schedules while incorporating stand-by time, based on local transportation needs.

The Postal Service will continue to meet with the national union and provide periodic updates regarding the BPI process when such information becomes available. The union will also be provided a final BPI report when that report has been completed.

Should you require additional information regarding this matter, please contact Rodney Lambson of my staff (202) 268-3627.

Sincerely

Doug A. Tulino
Manager
Labor Relations Policies and Programs

MVS Divisional Report
Michael O. Foster, Director
Javier E. Pineres, Assistant Director

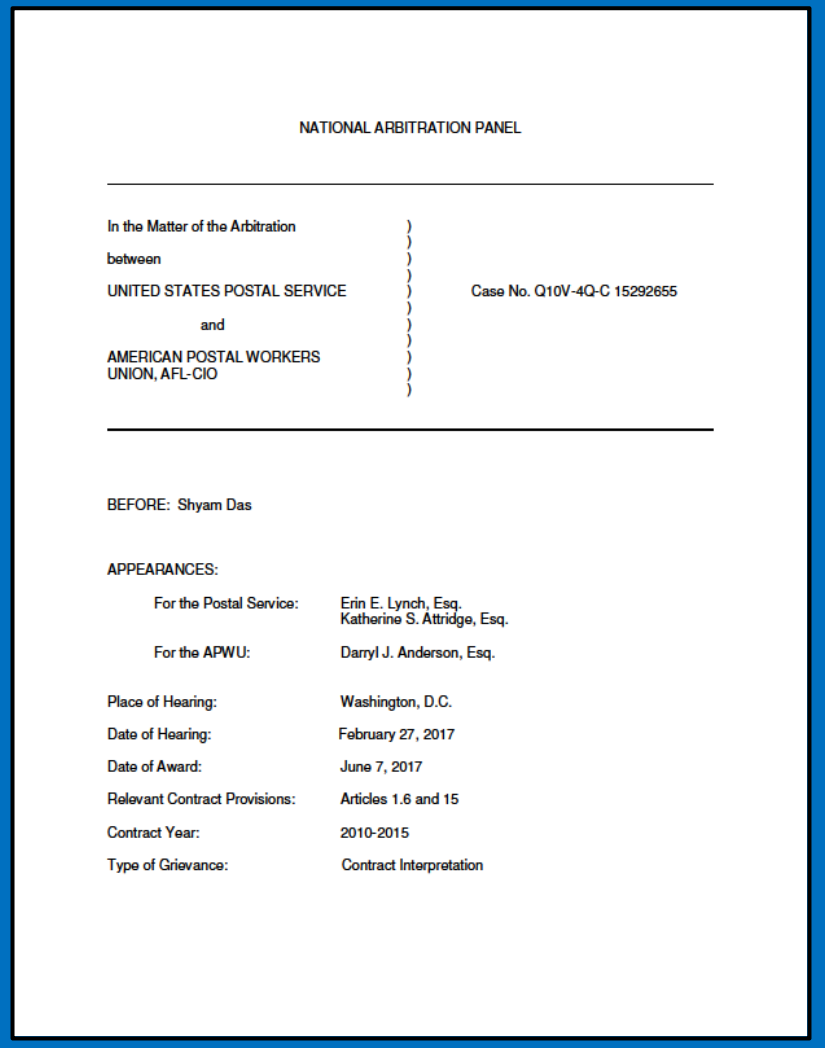
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Management felt that it could ignore their contractual responsibility and that they could change runs, eliminate runs, and remove you from your run, under the guise of calling it Zero Basing, and that made it OK.



In its post-hearing brief, the Postal Service expressly affirmed:

...[T]he Postal Service does not dispute that Schedule Examiner work is bargaining unit work, and that supervisors (and EAS employees) cannot perform bargaining unit work unless one of the exceptions provided for in Article 1.6 applies. The plain language of Article 1.6 prevents the Postal Service from reaching any other conclusion.



NATIONAL ARBITRATION PANEL

In the Matter of the Arbitration
between
UNITED STATES POSTAL SERVICE
and
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Case No. Q10V-4Q-C 15292655

BEFORE: Shyam Das

APPEARANCES:

For the Postal Service: Erin E. Lynch, Esq.
Katherine S. Attridge, Esq.

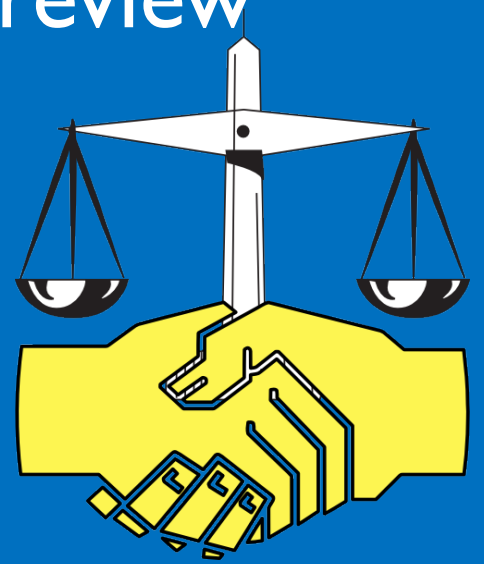
For the APWU: Darryl J. Anderson, Esq.

Place of Hearing: Washington, D.C.
Date of Hearing: February 27, 2017
Date of Award: June 7, 2017
Relevant Contract Provisions: Articles 1.6 and 15
Contract Year: 2010-2015
Type of Grievance: Contract Interpretation

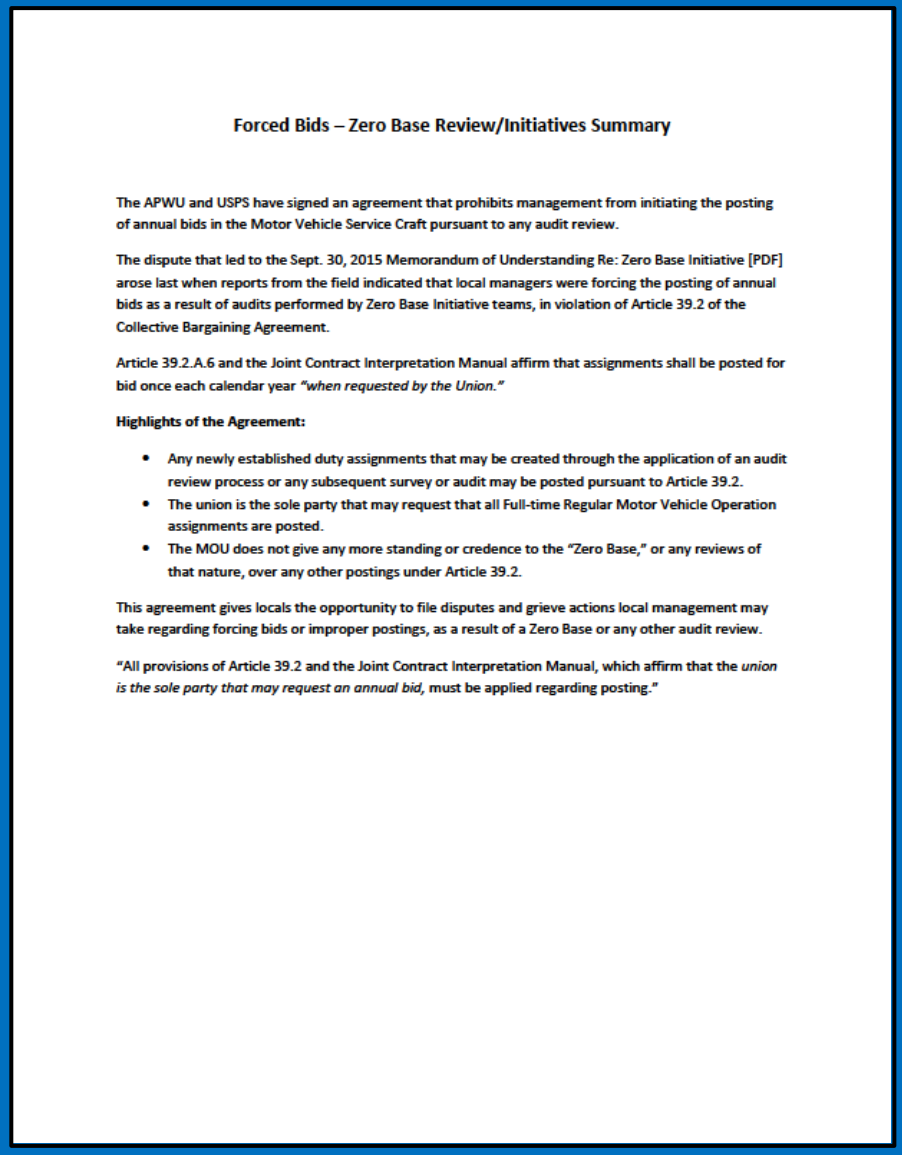
In some installations, management had 2-3 zero basing episodes in a year.



On 10/8/15, Assistant MVS Director Javier E. Pineres announced that the APWU and the Postal Service settled a dispute in September concerning management's restructuring of Tractor-Trailer Operator and Motor Vehicle Operator complements through the application of the audit review process known as "Zero Base."



Forced Bids Summary



Forced Bids – Zero Base Review/Initiatives Summary

The APWU and USPS have signed an agreement that prohibits management from initiating the posting of annual bids in the Motor Vehicle Service Craft pursuant to any audit review.

The dispute that led to the Sept. 30, 2015 Memorandum of Understanding Re: Zero Base Initiative [PDF] arose last when reports from the field indicated that local managers were forcing the posting of annual bids as a result of audits performed by Zero Base Initiative teams, in violation of Article 39.2 of the Collective Bargaining Agreement.

Article 39.2.A.6 and the Joint Contract Interpretation Manual affirm that assignments shall be posted for bid once each calendar year *"when requested by the Union."*

Highlights of the Agreement:

- Any newly established duty assignments that may be created through the application of an audit review process or any subsequent survey or audit may be posted pursuant to Article 39.2.
- The union is the sole party that may request that all Full-time Regular Motor Vehicle Operation assignments are posted.
- The MOU does not give any more standing or credence to the "Zero Base," or any reviews of that nature, over any other postings under Article 39.2.

This agreement gives locals the opportunity to file disputes and grieve actions local management may take regarding forcing bids or improper postings, as a result of a Zero Base or any other audit review.

"All provisions of Article 39.2 and the Joint Contract Interpretation Manual, which affirm that the *union is the sole party that may request an annual bid,* must be applied regarding posting."

The union filed the dispute in August 2014, after learning from our members in the field that once the Postal Service had concluded a Zero Base audit in a facility, local management was forcing annual bids, requiring all Postal Vehicle Service (PVS) duty assignments in the installation to be posted based on the results of the Zero Base audit.



Article 39.2.A.6 clearly states that the APWU is the sole party that may request that all full-time Motor Vehicle Operation assignments be posted.

Article 39.2.A.7 governs the posting of Vehicle Maintenance positions when requested by the union.



Furthermore, the union believed it was not enough to simply assert its positions with respect to posting duty assignments; it was necessary to point out that the union – and not management – is the sole party that may request an annual bid.

- Any newly established duty assignment that may be created through the application of an audit review process or any subsequent survey or audit may be posted pursuant to Article 39.2.

THE AGREEMENT

The union is the sole party that may require that all full-time regular Motor Vehicle Operation assignments are posted.



THE AGREEMENT

SETTLEMENT AGREEMENT
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKER'S UNION, AFL-CIO

Re: Zero Base Initiative

The Parties agree to resolve dispute No. Q10C-4Q-C 14256865, APWU No. HQTV20140505 concerning the Postal Services' restructuring of Motor Vehicle Craft Tractor Trailer Operator and/or Motor Vehicle Operator complements through its application of an audit review process termed "Zero Base" or any subsequent surveys or audits and requiring an annual bid not requested by the union as follows:

- The parties reaffirm that Article 39.2 provides the bas.s for the posting of duty assignments in the Motor Vehicle Craft. Any newly established duty assignments that may be created through the application of an audit review process or any subsequent survey or audit may be posted pursuant to this contractual provision.

- In accordance with Article 39.2.A.6 and the Joint Contract Interpretation Manual regarding the annual bid process, the union is the sole party to request that all Full-time Regular Motor Vehicle Operation assignments are posted.

The intent of this MOU is to reaffirm the parties' commitment to abide by the applicable contract provisions in consideration of the audit reviews conducted by the Postal Service.

Any grievances held in abeyance pending resolution of the above referenced case will be returned to the Step where it was held in abeyance and process in accordance with Article 15 of the grievance procedure; including, but not limited to regular arbitration.

Patrick M. Devine
Manager, Contract Administration Unit (APWU)
United States Postal Service

9-30-15
Date

Javier E. Pineres
Assistant Director, Motor Vehicle Craft
APWU, AFL-CIO

9/30/15
Date

HIGHLIGHTS OF THE AGREEMENT

- The Memorandum of Understanding (MOU) does not give any more standing or credence to the "Zero Base" or any similar review over any other posting under Article 39.2.



HIGHLIGHTS OF THE AGREEMENT

- Additionally, Article 39.2 allows for the determination of what constitutes a sufficient change of duties or principal assignment area to cause the duty assignment to be reposted as a subject of negotiations at the local level.

ARTICLE 39.2.A.7

All full-time regular Motor Vehicle Maintenance Craft duty assignments may be posted for bid once each calendar year upon mutual agreement between the parties at the local level.

Absent such local agreement, Motor Vehicle Maintenance Craft duty assignments shall be posted for bid every second calendar year, when requested by the Union.

ARTICLE 39.2.A.8

Article 39.2.A.8 specifically states, "Employees bidding pursuant to 6 or 7 above may bid only on those duty assignments that have the same position designation".



ARTICLE 39.2.A.8

This means that during the Once A Year Bid only those employees in positions with the same occupation code and level may bid or compete for the same duty assignments.







ARTICLE 39.2.A.8

- Level 7s mechanics can only bid on Level 7 mechanics jobs,
- Level 8s can only bid on Level 8 mechanic jobs,
- Level 9s can only bid on Lead Automotive Tech Level 9 jobs
- Level 10s can only bid on Lead Automotive Tech AG jobs.

DETAILS

Non-Bargaining Unit Detail. Motor Vehicle Craft employees temporarily detailed to a non-bargaining unit position may not bid on vacant motor vehicle craft duty assignments while so detailed.



DETAILS

However, nothing contained herein shall be construed to preclude such temporarily detailed employees from voluntarily terminating a non-bargaining unit detail and returning to their craft position.



DETAILS

These motor vehicle craft employees temporarily detailed to a non-bargaining unit position, however, will not be returned to the craft solely to circumvent the provisions of Section 2.A.10.



DETAILS

Any employee(s) detailed to a non-bargaining unit position must return to the craft for a minimum of one continuous pay period.

Upon return to the craft position, such employee(s) may exercise their right to bid on vacant motor vehicle craft duty assignments.



DETAILS

For bidding purposes, this circumvention provision must be met prior to the date of posting the award notice of the successful bidder.

RESIDUAL VACANCIES

Residuals are any positions left over after the annual bidding is complete.

Residual vacancies for the following positions are to be filled by the senior qualified bidder, from the appropriate position(s) as herein indicated.

Position	To Be Filled By Senior Qualified
Tire Repairman, 5-53 PS-6	Garage-man, KP 9, PS-5
Tractor-Trailer Operator, SP-**7015**, PS-8	Motor Vehicle Operator, KP 10, PS-7
Tools and Parts Clerk, SP 1-31, PS-6	All Motor Vehicle Craft Employees
Clerk, Vehicle Dispatcher, SP 5-10, PS-6	Motor Vehicle Operator, KP 10, PS-7 Tractor-Trailer Operator, SP 5-22, PS-8
Time & Attendance Clerk, SP 1-29, PS-6	All Motor Vehicle Craft Employees
Storekeeper Automotive Parts, SP 5-46, PS-7	All Motor Vehicle Craft Employees
Storekeeper Automotive, Parts, SP 5-47, PS-8	All Motor Vehicle Craft Employees
Vehicle Operations, Assistant-Bulk Mails, SP, 5-66, PS-8	Tractor-Trailer Operator, SP 5-22, PS-8

PREPARING FOR THE BID

The locals should request a pre-bid meeting with management to address issues and complexities involving the bidding process, and to determine any ground rules that need to be established.

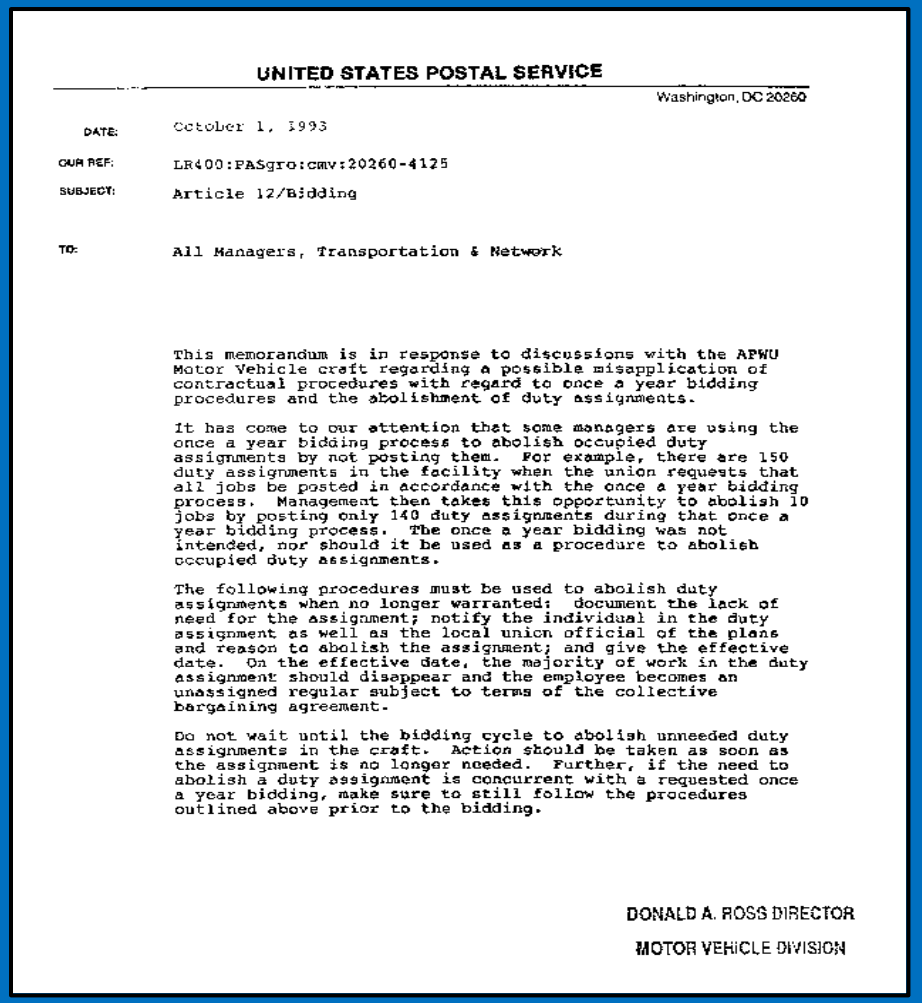


DUTY ASSIGNMENTS

Determine the amount of duty assignments available to be posted, and ensure that management does not attempt to reduce the amount of duty assignments that will be posted.

JCIM: The once a year bidding process was not intended, nor should it be used as a procedure to abolish occupied duty assignments.

Pat McGee Letter



UNITED STATES POSTAL SERVICE

Washington, DC 20260

DATE: October 1, 1993

OUR REF: LR400:PASgro:cmv:20260-4125

SUBJECT: Article 12/Bidding

TO: All Managers, Transportation & Network

This memorandum is in response to discussions with the APWU Motor Vehicle craft regarding a possible misapplication of contractual procedures with regard to once a year bidding procedures and the abolishment of duty assignments.

It has come to our attention that some managers are using the once a year bidding process to abolish occupied duty assignments by not posting them. For example, there are 150 duty assignments in the facility when the union requests that all jobs be posted in accordance with the once a year bidding process. Management then takes this opportunity to abolish 10 jobs by posting only 140 duty assignments during that once a year bidding process. The once a year bidding was not intended, nor should it be used as a procedure to abolish occupied duty assignments.

The following procedures must be used to abolish duty assignments when no longer warranted: document the lack of need for the assignment; notify the individual in the duty assignment as well as the local union official of the plans and reason to abolish the assignment; and give the effective date. On the effective date, the majority of work in the duty assignment should disappear and the employee becomes an unassigned regular subject to terms of the collective bargaining agreement.

Do not wait until the bidding cycle to abolish unneeded duty assignments in the craft. Action should be taken as soon as the assignment is no longer needed. Further, if the need to abolish a duty assignment is concurrent with a requested once a year bidding, make sure to still follow the procedures outlined above prior to the bidding.

DONALD A. ROSS DIRECTOR

MOTOR VEHICLE DIVISION

REVIEW

Review the bid package to ensure that the duty assignments are properly presented, with correct percentages of consecutive days off, and split days off. Ensure that all duty assignments are for 40 hours per week.

REVIEW

JCIM Article 8.2.D.

In postal installations which have 200 or more man years of employment in the regular work force, career employees in mail processing operations, transportation and vehicle maintenance facility operations will have consecutive scheduled days off, unless otherwise agreed to by the parties at the local level.

REVIEW

Remember that management is allowed to make changes to runs during the annual bidding, but they are prohibited from using the annual bidding to reduce the number of duty assignments.

AGREEMENT

If the parties are in agreement with the ground rules, and the bid package is acceptable, the local should then consider asking for the annual bid, and to request to have all positions covered under Article 39.2.A.6 or 7 posted for bid.



If your local is not satisfied and has not been able to agree the union then needs to determine if calling for the bid is in the best interest of the membership.



SENIORITY

The local should ensure that all employees seniority is correct. One employee with incorrect seniority, who bids in the wrong spot can cause a domino effect and have an entire bid reversed or canceled.



ARTICLE 13.6

An employee who is temporarily disabled will be allowed to bid for and be awarded a preferred bid assignment in accordance with the provisions in the various craft articles of the National Agreement, or where applicable, in accordance with the provisions of a Local Memorandum of Understanding, provided that the employee will be able to fully assume the position within six months from the time at which the bid is submitted.



ARTICLE 13.6

Management may, at the time of submission of the bid or at any time thereafter, request that the employee provide medical certification indicating that the employee will be able to fully perform the duties of the bid for position within six months of the bid.

ARTICLE 13.6

If at the end of the six-month period, the employee is still unable to fully perform the duties of the bid for position, management may request that the employee provide new medical certification indicating that the employee will be able to fully perform the duties of the bid for position within the second six months after the bid.

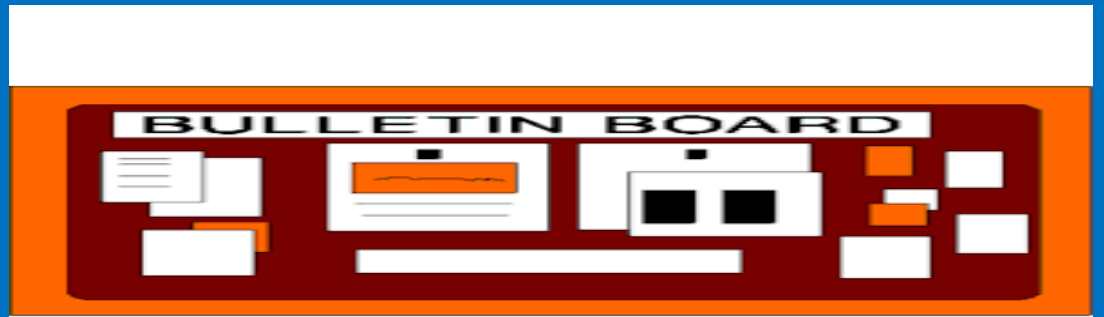
POSTING

Article 39.2.C States:

The notice shall remain posted for 10 calendar days, unless a different length for the posting period is established by local negotiations.

PLACE OF POSTING

The notice inviting bids for a craft assignment shall be posted on all official bulletin boards at the installation where the vacancy exist, where vehicle operations and or maintenance employees work so as to assure that it comes to the attention of all employees eligible to submit bids.



ABSENT EMPLOYEE

When an absent employee has requested in writing, and provided a personal mailing address, a copy of any notice inviting bids from the craft of the employee shall be mailed to the employee by the installation head.

BID RULES

Determine how the bidding will be done, and list any agreed upon rules.

- All full-time regular craft duty assignments shall be posted for bid.
- All full time regulars will bid in seniority order.
- All full time regular employees will be assigned bid times.

BID RULES

- Bid time shall be _____minutes per person
- What is the procedure for failure to report or call at or during their designated bid time
- May only bid on assignments that have the same position designation
- What will happen to residual vacancies
- When will the bids take effect.

MOTOR VEHICLE SERVICE DIVISION

